

Court No. - 37

Case :- WRIT - C No. - 25812 of 2011

Petitioner :- Gaurav

Respondent :- U.P. Power Corporation Ltd. And Another

Petitioner Counsel :- M.N. Singh, Arvind Kumar Singh Ii

Respondent Counsel :- Rajesh Tripathi

Hon'ble R.K. Agrawal,J.

Hon'ble Bharati Sapru,J.

As prayed, put up as a fresh case on 9th May 2011.

Order Date :- 4.5.2011

AM/-

Court No. - 36

Case :- WRIT - C No. - 25812 of 2011

Petitioner :- Gaurav

Respondent :- U.P. Power Corporation Ltd. And Another

Petitioner Counsel :- M.N. Singh, Arvind Kumar Singh Ii

Respondent Counsel :- Rajesh Tripathi

Hon'ble Satya Poot Mehrotra, J.

Hon'ble Rajesh Chandra, J.

Issue notice pending admission.

Notice on behalf of respondents no. 1 & 2 has been accepted by Sri Rajesh Tripathi.

Notice will be issued to respondent no.3 fixing the next date.

Counter affidavit on behalf of respondents may be filed within six weeks.

Rejoinder affidavit may be filed by the next date fixed in the matter.

List this case before appropriate Bench on 11.8.2011.

Order Date :- 23.5.2011

VKM

Court No. - 37

Case :- WRIT - C No. - 25812 of 2011

Petitioner :- Gaurav

Respondent :- U.P. Power Corporation Ltd. And Another

Petitioner Counsel :- M.N. Singh, Arvind Kumar Singh Ii

Respondent Counsel :- Rajesh Tripathi, S.C.

Hon'ble R.K. Agrawal, J.

Hon'ble Sunil Hali, J.

As prayed, counter affidavit be filed within two weeks. List thereafter.

Order Date :- 11.8.2011

AM/-

Court No. - 37

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Petitioner :- Gaurav

Respondent :- U.P. Power Corporation Ltd. And Another

Petitioner Counsel :- M.N. Singh, Arvind Kumar Singh Ii

Respondent Counsel :- Rajesh Tripathi, S.C.

Hon'ble Sunil Ambwani, J.

Hon'ble B. Amit Sthalekar, J.

Learned counsel appearing for U.P. Power Corporation Ltd. prays for and is granted a week's time to file counter affidavit.

List on 7.5.2012.

Till 7.5.2012 the recovery of the electricity dues vide citation dated 23.2.2011 shall remain stayed.

Order Date :- 30.4.2012

Asha

Court No. - 37

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Petitioner :- Gaurav

Respondent :- U.P. Power Corporation Ltd. And Another

Petitioner Counsel :- M.N. Singh, Arvind Kumar Singh Ii

Respondent Counsel :- Rajesh Tripathi, S.C.

Hon'ble Sunil Ambwani, J.

Hon'ble Aditya Nath Mittal, J.

List this case on 19.5.2012.

Stay is extended till then.

Order Date :- 7.5.2012

Kpy

Court No. - 37

Case :- WRIT - C No. - 25812 of 2011

Petitioner :- Gaurav

Respondent :- U.P. Power Corporation Ltd. And Another

Petitioner Counsel :- M.N. Singh, Arvind Kumar Singh Ii

Respondent Counsel :- Rajesh Tripathi, S.C.

Hon'ble Sunil Ambwani, J.

Hon'ble Aditya Nath Mittal, J.

Shri Rajesh Tripathi is allowed week's further time to file counter affidavit. List on 28th May, 2012. The interim order is extended till then.

Order Date :- 21.5.2012

SP/

Court No. - 37

Case :- WRIT - C No. - 25812 of 2011

Petitioner :- Gaurav

Respondent :- U.P. Power Corporation Ltd. And Another

Petitioner Counsel :- M.N. Singh, Arvind Kumar Singh Ii

Respondent Counsel :- Rajesh Tripathi, S.C.

Hon'ble Sunil Ambwani, J.

Hon'ble Aditya Nath Mittal, J.

We have heard learned counsel for the petitioner. Sri Rajesh Tripathi, learned counsel appearing for the respondent, has sent illness slip today.

It is submitted by learned counsel for the petitioner that the inspection was made in complete violation of the provisions of the U.P. Electricity Supply Code, 2005. The Checking report was not prepared and has not been signed by the petitioner. He further submits that the assessment has been made without giving any opportunity. The notice dated 23.11.2010, was not served, as the petitioner was in jail.

We are informed that in the criminal case of the theft of electricity, a charge-sheet has been submitted by the police under Section 135 of the Indian Electricity Act, 2003.

So far as assessment is concerned, we find that the second notice was served upon the petitioner and that after considering his reply, the provisional assessment was made finally on 23.12.2010. The petitioner thereafter again made a representation, which has been considered by the Executive Engineer in his order dated 23.2.2011. The Executive Engineer has found that the petitioner was drawing electricity unauthorisedly for 10 HP Motor by connecting cable to 63 KVA Transformer. The cable and the starter were sealed. The petitioner ran away from the spot.

The contention of the petitioner that the report was prepared

on account of some enmity was not accepted.

We find that the petitioner has a right to file appeal under Section 127 of the Electricity Act, 2003 against the final assessment made under Section 126(3) of the Act. The writ petition is, accordingly, dismissed on the ground of alternative remedy of filing an appeal.

If the appeal is filed, the same may be decided expeditiously on merits.

Order Date :- 28.5.2012

PG